

Uncovering the Forgotten Story: The Hidden Civil Rights Movement of 1838

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Article Text

Most people don't know that Black people had the right to vote in Pennsylvania before 1838. There was a fight to keep that right and we call that the *1838 Civil Rights movement*.

This week, students from Ms. Jonas' Social Studies classes at Science Leadership Academy, a Philadelphia School District high school, explored this idea through visits to see original Primary Sources that Black Pennsylvanians and the Pennsylvania Abolition Society generated during that movement, at the Historical Society of Pennsylvania.

They also took a walking tour to visit the sites where it happened.

And they had questions; lots of them!

We are now answering those questions on our Student Q&A Page. Our approach is to provide an overview answer but also point to primary sources so students can get the full answer through their own research.

We realized that we needed to make the timeline of the 1838 Civil Rights movement a bit clearer. This movement has been minimized. Historians who documented this history have lamented this reality.

Since this is not in textbooks yet, we are starting to put some resources together for educators to teach this history. We've built a new interactive timeline for students.

So what was the 1838 Civil Rights Movement?

1780-1830

Pennsylvania abolished slavery with the Gradual Emancipation Act of 1780. Then Pennsylvania had a revision to the original constitution in 1790. That constitution defined who could vote. To vote a person had to:

- Be a freeman.
- Be 21 years or older.
- Have lived in PA two years prior to the election.
- Have paid taxes for at least six months prior to the election.

This definition applied to thousands of Black men in Pennsylvania. The reality is that most Black men tried to vote but encountered harassment at the polls.

1830-1837

Rising Black Political Activism and Rising white Opposition

In 1830, Black political power was organizing. A year earlier, David Walker published a popular appeal that was seen as a call to action for equality. "This country is as much ours as it is the whites, whether they will admit it now or not, they will see and believe it by and by." On September 20, 1838, the first 'Colored Convention' was held in Philadelphia at Mother Bethel AME.

The early conventions focused on moral uplift through temperance and education and emigration to Canada. But they also introduced a governance approach to Black organization, using rules of order, voting and elections within the convention. Black leaders were, in essence, educating each other on the proper execution of democratic governance.

In 1831, Nat Turner organized a political action/liberation/strike of enslaved people in South Carolina, demonstrating that enslaved Black people could organize and would fight for freedom.

White legislators in PA (who may have been aligned with slave owner interests in the south), used growing Black activism to stoke white fear. They began to introduce legislation to control and restrict Black people. In 1831, Franklin Vansant introduced House Bill 446 that called for stricter laws against Black emigration to Pennsylvania and to restrict Black mobility.

Black leadership in Philly issued a 'Memorial' (a written statement to the legislature) to oppose HB 446. Eventually, HB 446 was dropped.

White oppression continued to grow and by 1834 turned into violent attacks on the Black community in Philadelphia.

By the fourth Colored Convention in New York in 1834, the tone became more political. The convention created a committee to inquire into whether laws had been passed by state legislatures bearing on the rights and liberties of colored citizens and "to propose the proper mode of opposing them, and effecting their repeal."

The increase in anti-Black legislation was on their radar and they created a committee to start looking more deeply at what was happening in state legislatures.

William Fogg and James Forten Use the Law to Assert Citizenship and Rights

In 1835, William Fogg, a Black farmer in Luzerne County, decided to challenge poll harassment. He tried to vote and was turned away, so he filed suit against white county election commissioner Hiram Hobbs. Lower courts ruled in his favor but Hobbs appealed those rulings and eventually, the case went to the PA Supreme Court.

That process took about 4 years such that the PA Supreme Court's decision coincided with all the other activity that was happening in 1837 and 1838.

James Forten may have been watching all of this and prepping to assert his right to vote because in 1837 he filed a legal document proving his Revolutionary War service. He may have been getting ready to assert that he was a citizen with full rights as part of a larger movement.

1837-1838

The PA legislature decided that there were enough requested changes to the PA constitution that a new version needed to be written. A 'Reform Convention' was planned to work through the requested changes.

Meeting first in Harrisburg in May 1837, the idea of universal suffrage was introduced. White Philadelphia legislators knew that there were nearly 20,000 free Black people in Philadelphia and if all of them could vote, this could change the tide of Philadelphia politics.

This is when the idea of inserting the word 'white' before the word 'freeman' was introduced as a proposed change to the constitution.

Black Organizing to Influence Convention Delegates

White allies the Pennsylvania Abolition Society (PAS) must have had a sense of the possibility of major legal changes. They created a committee to begin a census count of the Black population of Philadelphia.

This was important because in that count they would determine actual voting power of Black Philadelphians by determining their wealth and tax payments.

Charles Gardner, Pastor of the First African Presbyterian Church, became an agent of the PAS and a leader in the collection of census data.

By June 1837, Black communities in Pittsburgh and Philadelphia were organizing. Community meetings were held to determine actions.

Pittsburgh leaders John B. Vashon, Lewis Woodson and others submitted a memorial to the legislature. Philadelphians Charles Gardner and Frederick Hinton drafted a memorial (though it wasn't submitted until six months later). John B. Vashon and Lewis Woodson went to Harrisburg to report the proceedings back to the Black community.

Another possible indication of the organizing energy of the movement is the fact that *The Colored American*, one of the nations first Black newspapers, also started publication during this time.

Black Men Vote in the Bucks County Election

In October 1837, approximately 40 Black men voted in the Bucks County Election. Democrats (recall that at this point in time they were aligned with Southern Democrat slavery interests), lost. They claimed that the Black vote was 'illegal' and filed suit.

This was happening as the Reform Convention, which had now moved to Philadelphia's Musical Fund Hall, right in the heart of the Black Metropolis, was debating adding the word 'white' to the constitution.

In December 1837, Judge Fox issued his opinion concerning the 'illegal' Black votes. He agreed with the Democrats, publicly stating his belief that Black people were inferior. The votes were invalidated and the election overturned.

Census Reports Delivered

In January 1838, Charles Gardner and the PAS delivered the report on the census data as well as a listing of all Black business owners in Philadelphia to the convention delegates in hopes that they would recognize the moral, social and economic worth of the Black population and vote to not include the word 'white' in the constitution.

Proposal to Include the Word 'white' Succeeds

On January 20, 1838, the Reform Convention voted to insert the word 'white' in front of 'Freeman' in the PA Constitution.

Black Leaders Expelled from Musical Fund Hall

As if to emphasize the immediate loss of rights, on the day of the vote, Black leaders at the convention were forcibly removed from Musical Fund Hall.

The next step was for the PA Constitution to be ratified by a vote of the general white population and that vote would happen in October 1838.

Black Actions to Influence White Pennsylvanians to Vote 'No'

The Black community went on a hearts and minds campaign to influence Pennsylvanians to vote no.

Gardner and Hinton's memorial, written six months earlier, was finally published and distributed. Robert Purvis wrote '*The Appeal of the 40,000*' and was distributed. A second printing of the report on the census was created that listed beneficial society and school data, and it too was distributed.

Fogg Vs. Hobbs Rules Against William Fogg

In February 1838, the PA Supreme Court issued its decision in *Fogg vs. Hobbs*. Just like Judge Fox, Judge Gibson of the Supreme Court said in his opinion that he believed in the inferiority of Black people. The PA Supreme Court ruled that William Fogg is ineligible to vote. Both of these decisions most likely influenced white votes to vote 'yes' to inserting the word 'white' in the constitution.

May 17-18, 1838: Was White Mob Violence Aimed at Influencing the Vote?

For years prior, the Black community and white ally abolitionists had been pooling together monies to build a beautiful hall to meet the need for more abolitionist and Black community meeting space for a multitude of societies, political groups and educators. The hall was huge; it could seat 3000 people, had separate lectures rooms that could hold hundreds and even had a free produce (meaning goods not produced by slave labor) store.

On May 17, 1838, a mob attacked and burned Pennsylvania Hall, days after it opened. The attacks began as the Female Anti-Slavery Convention was held inside. The mob threw bricks at the brand new windows and glass shards rained down on the participants inside.

The next day, the same mob attacked and burned the Shelter for Colored Orphans, located on 13th and Callowhill. ***But let's stop here for a moment: this was an attack on a Black orphanage.*** The building was under construction and no children were in the building at the time; but it was still a threat aimed at *a childrens facility*. This attack has always had a below-the-fold status in relationship to Pennsylvania Hall but it deserves more attention.

The hearts and minds of white Pennsylvanians were something all parties hoped to influence in the vote to ratify the constitution during the summer of 1838.

The attacks struck at abolition and the Black community. But the mob and their allies in the city authorities may also have been attempting to show white Pennsylvanians the power of white racist rage; perhaps hoping this might influence white people not to encourage more of it with their vote.

Disenfranchisement - "A Sacrifice on the Alter of Slavery"

In October 1838, the PA Constitution was ratified by a vote of 113,971 FOR to 112,759 AGAINST.

Robert Purvis called this "A Sacrifice on the Alter of Slavery."

Black men would not regain the right to vote until the 15th Amendment, some 38 years later.

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Images

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- Lorenzo Harris sketch of Nat Turner — https://static.wixstatic.com/media/af048d_c5356fbc5e5d4c65aeb721eb48a25226~mv2.jpeg

- William Fogg (AI Re-imagining) —
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- Charles Gardner, Pastor, First African Presbyterian Church and Lead Census Organizer —
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- Civil Rights Leader John Vashon —
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- Approximately 40 Black men vote in the Bucks County Election, 1837 (AI re-imagining) —
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- Excerpt from the PA Constitutional Proposed Changes, 1837 —
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